

Document: EU countries consider tougher rules on carbon allowance reserves

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By Ben Makuch · Sep 21, 2026, 5:08 PM · [View in your browser](#)

BRUSSELS — EU member countries are considering curbing the European Commission’s proposal to introduce a new tool designed to prevent the EU carbon price from rising too high, according to a draft amendment obtained by POLITICO .

In the Commission’s proposal , the invalidation mechanism of the Market Stability Reserve (MSR), which caps the number of Emissions Trading System allowances held in reserve to 400 million, would be scrapped altogether once the motion is agreed to by all EU bodies.

That would create more reserve credits that could be released into the market if the ETS allowance price gets too high, thereby giving the EU more firepower to push down the carbon price.

But the Council of the European Union compromise draft, due to be debated by EU member countries on Wednesday, proposes a less liberal approach. It would suspend the invalidation mechanism as proposed by the Commission, but only until Dec. 31, 2030. After that, it would introduce a new MSR cap of 800 million allowances. The Commission proposes no cap at all.

The Council’s draft compromise would therefore place more constrictions on the EU’s ability to reduce the carbon price by releasing more permits into the market than the Commission’s proposal does — and is therefore more likely to please green groups and other champions of a high carbon price.

A group of ETS-skeptic countries , led by Poland and Italy, had previously backed an April proposal for more “firepower” in the MSR that would have removed the invalidation rule altogether, a move they argued would help lower carbon costs for heavy industries.

But the latest draft, circulated under the Irish Council presidency, aligns more closely with a German proposal tabled last week. Both the European Parliament and the Council are currently considering the Commission’s July ETS reform proposal, with inter-institutional negotiations expected to begin in 2027.

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